

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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KIMON CAMPBELL, JEFFERSON DESIR AND TRAVIS JOHN,

SUMMONS

Plaintiffs,

Index #

-against-

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, POLICE OFFICER DONALD J.
BARTON (SHIELD NO.: 12248) & POLICE OFFICER JOHN
DOE#1, POLICE OFFICERS JOHN DOES #2-12 (names and
numbers are unknown at present), and other unidentified
members of the New York City Police Department,

Plaintiffs designate
Kings County
as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 30, 2019

Respectfully submitted,

/s/

Brownstein Legal, P.C.
Ilissa Brownstein, Esq.
40 Exchange Place, Suite 1000
New York, New York 10005
ib@brownsteinlegal.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL
100 Church Street, New York, NY 10007

POLICE OFFICER DONALD J. BARTON (SHIELD NO. 12248)
70TH PRECINCT Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
KIMON CAMPBELL, JEFFERSON DESIR AND TRAVIS JOHN,

**VERIFIED
COMPLAINT**

Plaintiffs,

-against-

Index #

THE CITY OF NEW YORK, POLICE OFFICER DONALD J.
BARTON (SHIELD NO.: 12248) & POLICE OFFICER JOHN
DOE#1, POLICE OFFICERS JOHN DOES #2-12 (names and
numbers are unknown at present), and other unidentified
members of the New York City Police Department,

Defendants.

-----X

Plaintiffs KIMON CAMPBELL, JEFFERSON DESIR & TRAVIS JOHN, by their attorney, ILISSA
BROWNSTEIN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiffs were unlawfully arrested and imprisoned by the defendants. Plaintiffs were deprived of their federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiffs, caused the unjustifiable arrest of plaintiffs. Defendants additionally used excessive force in violation of Plaintiffs' constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Kimon Campbell is a citizen of the United States and a resident of Brooklyn, New York.
3. Jefferson Desir is a Citizen of the United States and a resident of Brooklyn, New York.
4. Travis John is a citizen of the United States and a resident of Brooklyn, New York.
5. Police Officer Donald J. Barton (Shield No.: 12248) is and was at all times relevant herein an office, employee and agent of the New York City Police Department.
6. Police Officer Donald J. Barton is being sued in his individual capacity and official capacity.

7. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
9. New York Police Officers John Doe #2-12 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
10. Police Officers John Doe #2-12 are being sued in his/her individual capacity and official capacity.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
13. Plaintiffs in furtherance of their State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50 relative to their false arrest and denial of fair trial claims.
14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
15. The City of New York held a 50(h) hearing examination of all three Plaintiffs on May 30, 2018.

STATEMENT OF FACTS

16. On February 3, 2018, at approximately 10:30PM, at Clarendon Rd between 22nd and 23rd Streets in Brooklyn, NY, Claimants Kimon Campbell, Jefferson Desir and Travis John were unlawfully arrested for obstruction of governmental administration, resisting arrest and disorderly conduct. Claimants were profiled. They did not commit any crimes.
17. In arresting Mr. Campbell, Mr. Desir and Mr. John, Defendants used undue force upon him, having no privilege whatever to seize him and causing him physical offense and injury in the process.
18. In arresting Kimon Campbell and Jefferson Desir, Defendants used excessive force upon them by placing the handcuffs extremely tight, thereby causing additional physical injuries to claimants.
19. Mr. Campbell, Mr. Desir and Mr. John were incarcerated for approximately 25.5 hours.
20. Plaintiffs accepted ACD's. Mr. Campbell's case was dismissed and sealed on June 3, 2018. Mr. Jefferson and Mr. John's cases were dismissed on August 3, 2018.
21. Plaintiffs thereafter filed a notice of claim timely for all claims asserted. A 50-h hearing was held and thirty (30) days passed without settlement of Plaintiff's claim.

FIRST CAUSE OF ACTION

ASSAULT

22. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 21 with the same force and effect as if more fully set forth at length herein.
23. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiffs, and that such acts caused apprehension of such contact in the plaintiffs. Plaintiffs were assaulted by numerous officers.
24. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
25. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**BATTERY**

26. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth at length herein.
27. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiffs, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to the plaintiffs and caused such battery. Plaintiffs were assaulted by numerous officers.
28. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
29. The City, as the employer of Defendants is responsible for his wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION**FALSE ARREST AND FALSE IMPRISONMENT**

30. Plaintiffs repeat and allege paragraphs 1 through 29 as if fully set forth herein.
31. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.
32. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
33. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

- 34. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.
- 35. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FIFTH CAUSE OF ACTION

FAILURE TO INTERVENE

- 36. The plaintiffs repeat, reiterate and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.
- 37. Defendants had an affirmative duty to intervene on behalf of plaintiffS, whose constitutional rights were being violated in their presence by other members of the NYPD.
- 38. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
- 39. As a result of the foregoing, plaintiffs were subjected to an illegal search and undue force upon their person over the course of the false arrest.
- 40. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
- 41. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

NEGLIGENCE

- 42. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.
- 43. Defendants owed a duty of care to plaintiffs.
- 44. Defendants breached that duty of care by subjecting them to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.

45. As a direct and proximate cause of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.
46. All of the foregoing occurred without any fault by plaintiffs.
47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

48. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.
49. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
50. As a result of the foregoing, plaintiffs were deprived of liberty and sustained great emotional injuries.
51. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

EIGHTH, NINTH, TENTH, ELEVENTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Fifth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal first-amendment-retaliation claim (8th claim); false-arrest/excessive-force/unlawful-search claims (9th claim); and deprivation-of-fair-trial claim (11th claim).

52. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.
53. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiffs' federal constitutional rights as protected by 42 USC Section 1983.
54. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiffs' Section 1983 ones here.

55. Plaintiffs' federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his First, Fourth, Fifth and Fourteenth Amendment rights.
56. In particular, Plaintiffs allege that Defendants' retaliatory and harassing false arrest, use of undue force upon him, unlawful search and fabrication of evidence violated their First, Fourth, Fifth and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiffs to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.
57. Insofar as Plaintiffs' federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiffs repeat and reiterate the above allegations in support of the federal claims here.
58. In the event Plaintiffs prevails at trial on one, some or all of their 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

TWELVETH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

59. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.
60. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
61. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
62. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
63. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants whose discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiffs here.

- WHEREFORE, KIMON CAMPBELL, JEFFERSON DESIR AND TRAVIS JOHN**, plaintiffs, demand a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Respectfully submitted:

By: /s/
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New York, New York 10005
(212) 691-3333

CITY OF NEW YORK: CORPORATION COUNSEL
100 Church Street, New York, NY 10007

POLICE OFFICER DONALD J BARTON (SHIELD NO.: 12248)
70TH PRECINCT Brooklyn, New York

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiffs are out of the county.

DATED: New York, New York
April 30, 2019

_____/s/
Ilissa Brownstein, Esq.